

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Simone Cherry (T2)	Team: Team # 2	CCRB Case #: 201401445	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 02/07/2014 10:33 PM	Location of Incident: North East Corner 8th Avenue and West 145 Street	18 Mo. SOL 8/7/2015	Precinct: 32
Date/Time CV Reported Thu, 02/13/2014 11:11 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 02/13/2014 11:11 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM John Virga	24469	946378	032 PCT
2. POM Jaysen Basnight	29694	936178	032 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Pearse Canavan	23114	934575	032 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM John Virga	Abuse: Police Officer John Virga searched § 87(2)(b)	A . Exonerated
B . POM John Virga	Abuse: Police Officer John Virga searched the car in which § 87(2)(b) was an occupant.	B . Exonerated
C . POM Jaysen Basnight	Abuse: Police Officer Jaysen Basnight searched the car in which § 87(2)(b) was an occupant.	C . Exonerated

Case Summary

On February 13, 2014, § 87(2)(b) called the Civilian Complaint Review Board to file this complaint.

On February 7, 2014, at approximately 10:33 p.m., § 87(2)(b) was arrested § 87(2)(a) 160.50

§ 87(2)(b). The following allegations resulted:

- **Allegation A: Abuse of Authority: Police Officer John Virga searched § 87(2)(b)** § 87(2)(g). Therefore, it is recommended that allegation A be closed as **exonerated**.
- **Allegations B: Abuse of Authority: Police Officer John Virga searched the car in which § 87(2)(b) was an occupant.**
- **Allegation C: Abuse of Authority: Police Officer Jaysen Basnight searched the car in which § 87(2)(b) was an occupant.** § 87(2)(g). Therefore, it is recommended that allegations B and C be closed as **exonerated**.

This case was not mediation eligible.

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of his interview. He is a black man, § 87(2)(b), with black hair and brown eyes.
- At the time of this interview, § 87(2)(b) was unemployed.

CCRB Testimony

On February 19, 2014, § 87(2)(b) was interviewed at the Civilian Complaint Review Board (encl. 5a-k). On August 22, 2014, a follow-up call was made to § 87(2)(b) (encl.17e).

On February 7, 2014, at approximately 8:00 p.m., § 87(2)(b) was driving alone in his 2005 gray Dodge wagon at West 145th Street and 8th Avenue in Manhattan, when he noticed his airbag light was on. § 87(2)(b) pulled into a bus lane, turned on his hazard lights then turned them back off. He then looked through his rear window and saw two officers on foot approach his vehicle.

PO 1 was identified via investigation as Police Officer Jaysen Basnight. § 87(2)(b) described him as a black man, with a brown complexion, in his early 30's, approximately 6'1" tall, 180 to 200 pounds. Police Officer Basnight had a lazy eye and wore a bullet proof vest. PO 2 was identified via investigation as Police Officer John Virga. § 87(2)(b) described him as white man, in his late 20's to early 30's with straight black hair. Police Officer Virga had a medium build, 6'3" tall, and 180 pounds. Both officers were dressed in plainclothes.

When § 87(2)(b) saw the officers, unprompted, he looked in his pockets for his driver's license. Police Officer Basnight approached § 87(2)(b) and told him to stop moving and to roll down his car window and he complied. Police Officer Basnight opened § 87(2)(b)'s car door and told him to exit his vehicle. § 87(2)(b) complied. § 87(2)(b) wore dark blue jeans, boots, and a black leather jacket, but left the jacket on the back car seat when he exited the vehicle. Police Officer Basnight searched § 87(2)(b)'s pants pockets. § 87(2)(b) only had money in his pants pocket and never removed the money from his pocket.

Police Officer Basnight told § 87(2)(b) to stand at the back of the vehicle. § 87(2)(b) turned his head and saw Police Officer Virga searching his vehicle by looking in the glove compartment and on the seats. However, § 87(2)(b) did not witness the entire search because Police Officer Basnight told him to turn his head. § 87(2)(b) told Police Officer Basnight that the search of his vehicle was illegal. Police Officer Basnight asked § 87(2)(b) why he kept turning around and if he had anything to hide and said if they did not find guns or warrants they would let him go. § 87(2)(b) heard Police Officer Virga say he recovered something and saw him holding a razor blade and a bag of marijuana which was recovered from his car. § 87(2)(b) admitted the marijuana was either on the back car seat or underneath his coat, but denied the marijuana belonged to him. Police Officer Virga told Police Officer Basnight to arrest him.

§ 87(2)(b) was handcuffed without incident. Police Officer Pearse Canavan and additional officers responded and transported § 87(2)(b) and his vehicle to the 32nd Precinct stationhouse. § 87(2)(b) was issued a Desk Appearance Ticket § 87(2)(a) 160.50 and his vehicle was returned to him later that day.

NYPD Statements:

Subject Officer: POLICE OFFICER JOHN VIRGA

- *Police Officer Virga was § 87(2)(b) at the time of this interview. He is a white man, § 87(2)(b), with brown hair and hazel eyes.*
- *On February 7, 2014, Police Officer Virga worked from 7:30 p.m. until 4:05 a.m. the following day Police Officer Virga was assigned to the 32nd Precinct Anti-Crime team. He drove unmarked car § 87(2)(e). He was dressed in plainclothes and partnered with Police Officer Jaysen Basnight.*

Memo Book

§ 87(2)(a) 160.50

CCRB Testimony

Police Officer Virga provided a statement to the CCRB on April 23, 2014 (encl. 9e-f). On February 7, 2014, at 10:25 p.m., Police Officer Virga saw § 87(2)(b) seated alone inside his vehicle that was parked at a bus stop located at West 145th Street and 8th Avenue in Manhattan. Both he and Police Officer Basnight approached the vehicle. Police Officer Basnight stood on the passenger side of the vehicle and Police Officer Virga stood on the driver's side. They were initially going to tell § 87(2)(b) to move from the location, but smelled a strong smell of marijuana emanating from the vehicle. Police Officer Virga then told § 87(2)(b) to step out the vehicle and he complied. Police Officer Virga saw the top part of a folded gravity knife with a black handle sticking out of § 87(2)(b)'s top front right change jean pants pocket. He did not remember the size. Police Officer Virga removed the knife.

Police Officer Virga smelled marijuana on § 87(2)(b) and asked whether he had anything else on him. § 87(2)(b) responded that he had a bag of marijuana in his jean pants pocket. Police Officer Virga then told § 87(2)(b) to take the marijuana out. § 87(2)(b) removed a bag of marijuana from his left jean pocket. Police Officer Virga then ordered § 87(2)(b) to stand at the back of the vehicle with Police Officer Basnight, and he complied.

Police Officer Virga then searched the front and back seat of § 87(2)(b)'s vehicle. Police Officer Virga may have looked in the glove compartment, but did not recover contraband or any items from inside the car. Afterwards Police Officer Virga handcuffed § 87(2)(b) and radioed for a unit to transport him. § 87(2)(b) was subsequently transported to the 32nd Precinct stationhouse where Police Officer

Canavan was assigned the arrest and issued § 87(2)(b) a Desk Appearance Ticket § 87(2)(a) 160.50

Subject Officer: POLICE OFFICER JAYSEN BASNIGHT

- Police Officer Basnight was § 87(2)(b) at the time of this interview. He is a black man, § 87(2)(b), with brown hair and brown eyes.
- On February 7, 2014, Police Officer Basnight worked from 7:30 p.m. until 4:05 a.m. the following day. Police Officer Basnight was assigned to the 32nd Precinct Anti-Crime team, in unmarked car § 87(2)(e). He was dressed in plainclothes and partnered with Police Officer John Virga.

Memo Book

At 10:25 a.m., stopped § 87(2)(b) at West 145th Street and 8th Avenue in Manhattan and placed him under arrest at 10:33 p.m. (encl. 10b-d).

CCRB Testimony

Police Officer Basnight provided a statement to the CCRB on May 1, 2014 (encl.10e-f). § 87(2)(g)

Police Officer Basnight smelled marijuana emanating from § 87(2)(b)'s vehicle. He also heard Police Officer Virga ask § 87(2)(b) if he had marijuana on him, which § 87(2)(b) admitted to having on him, but Police Officer Basnight did not know the exact location of the marijuana.

Police Officer Virga frisked § 87(2)(b) which was done for their safety, and found a knife in § 87(2)(b)'s pants change pocket, and removed it. Police Officer Basnight could not recall the type of knife.

After Police Officer Virga handcuffed § 87(2)(b) both he and Police Officer Virga searched § 87(2)(b)'s vehicle which was incident to his arrest and to make sure that no weapon or contraband was in the vehicle. Police Officer Basnight looked into the vehicle, in the glove compartment, and on the car seats, but no contraband was recovered. Afterwards Police Officer Basnight drove § 87(2)(b)'s vehicle to the 32nd Precinct stationhouse. Police Officer Virga drove the police car back to the precinct and the other responding officers drove § 87(2)(b) to the precinct.

Additional Officers Interviewed

Police Officer Canavan was interviewed at the CCRB on April 23, 2014 (encl. 8h-i). § 87(2)(g)

NYPD Documents

Roll Call

- The 32nd Precinct Roll Call dated February 7, 2014, documented that Police Officer Virga and Police Officer Basnight were assigned to the Anti-Crime Unit (encl. 13b and 13d).

Desk Appearance Ticket

- The Desk Appearance Ticket § 87(2)(a) 160.50 was issued by Police Officer Canavan. § 87(2)(b)'s scheduled criminal court date was § 87(2)(b) (encl. 11).

Arrest for Incident and Disposition

- § 87(2)(a) 160.50

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of July 24, 2014, nearly two months after the 90-day-filing deadline, with regard to the incident (encl. 16a-b).

§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- § 87(2)(b) filed the following CCRB complaints (encl. 3b).

- § 87(2)(b)

Subject Officers CCRB History

- Police Officer Virga has been a member of the service for six years and there are no substantiated CCRB allegations against him (encl. 2).
- Police Officer Basnight has been a member of the service for nine years and there is one substantiated CCRB allegation against him (encl. 3a-b).
 - CCRB case 200706401, the Board substantiated a discourteous language allegation against Police Officer Basnight and recommended command discipline. The NYPD issued command discipline—B.

Conclusion

Identification of Subject Officers

§ 87(2)(b) stated it was the black male officer who searched his person. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A-Abuse of Authority: Police Officer John Virga searched § 87(2)(b)

It is undisputed that § 87(2)(b) was searched. § 87(2)(g)

Police Officer Virga acknowledged it was at night when he saw § 87(2)(b)'s vehicle parked in a bus lane. He approached the vehicle and asked § 87(2)(b) to exit vehicle after he claimed to have smelled marijuana emanating from vehicle. Police Officer Virga then searched § 87(2)(b) after he saw a gravity knife with a black handle protruding from the front top coin jean pocket and removed it.

§ 87(2)(b) stated he saw two officers through his rear car window and unprompted, looked in his pockets for his driver's license. An officer approached and told him to stop moving and to roll down his car window. This same officer opened his car door and told him to exit his vehicle. § 87(2)(b) exited the vehicle and the officer searched his pants pockets. § 87(2)(b) claimed only money was in his pockets and the officer never removed the money from his pockets.

Police Officer Virga charged § 87(2)(b) § 87(2)(a) 160.50

§ 87(2)(b) also admitted he had a razor blade with a black handle § 87(2)(g)

It is unlawful for any person in a public place or street to wear outside of clothing or carry in open view any knife with an exposed or unexposed blade unless such person is actually using such knife for a lawful purpose, according to the New York City Administrative Code 10-133 [b] (encl. 0).

An officer can also search a person for a deadly weapon or any instrument if they reasonably suspect they are in danger of physical injury, and if he finds such a weapon or instrument, which he believes may constitute the commission of a crime, may take it and keep it until the completion of the questioning, and return it if lawfully possessed or arrest such person, according to the New York State Criminal Procedure Law, Section 140.50(3) (encl. A).

The court concluded that in order to stop and frisk an individual, the detaining officer must possess “specific” and “articulable facts” from which he inferred that the defendant was carrying a gravity knife as opposed to a lawful knife, such as a pocket knife, and must possess reasonable suspicion of danger of physical injury warranting seizure of knife, according to People v. Vargas (encl. 0A), 2011 NY Slip Op 8457 (Supreme Court NY County). In Vargas, an officer testified that the clip and head of a knife was in plain view and that he knew from experience that gravity knives are typically clipped on the outside of the pocket with the head of the knife protruding out of pocket for easy access. Therefore, the officer inferred that the defendant was carrying a gravity knife. The court found that the officer had reasonable suspicion that the knife was an illegal gravity knife.

§ 87(2)(g)

Therefore, it is recommended that allegation A be closed as **exonerated**.

Allegation B-Abuse of Authority: Police Officer John Virga searched the car in which § 87(2)(b) was an occupant.

Allegation C-Abuse of Authority: Police Officer Jaysen Basnight searched the car in which § 87(2)(b) was an occupant.

It is undisputed that Police Officer Virga and Police Officer Basnight searched § 87(2)(b)'s vehicle. § 87(2)(b) acknowledged that he only saw Police Officer Virga search his car by looking on the seats and in glove compartment and recover a bag of marijuana and razor blade from the vehicle.

Both Police Officer Virga and Police Officer Basnight admitted they both smelled marijuana upon approaching § 87(2)(b)'s vehicle and searched the front and back seats of § 87(2)(b)'s vehicle, and glove compartment, but did not recover any items from the vehicle. The officers arrested § 87(2)(b) and drove him and his vehicle to the precinct.

§ 87(2)(g)

. Police Officer Virga charged § 87(2)(b) § 87(2)(a) 160.50

The court concluded that if an officer smells the distinctive odor of drugs probable cause will exist to search the car and a limited search exists to protect an officer from an arrestee who may gain access to a weapon or may be able to destroy or conceal a weapon or evidence, according to People v. Ulerio (encl. 1a-c), 781 N.Y.S.2d 627 (2003-Criminal Court NY County). In Ulerio, an officer approached a stopped

vehicle and smelled the odor of marijuana and asked the defendant to exit vehicle so that he could be frisked for a weapon. A gravity knife was found on him. The officer then asked the defendant did he have anything else on him to which the defendant responded he had weed in his pocket. The officer recovered four ziplock bags of marijuana from defendant's pockets.

§ 87(2)(g)

Therefore, it is recommended that allegations B and C be closed as **exonerated**.

Team: TWO

Investigator:	_____	<u>Simone Cherry</u>	<u>September 10, 2014</u>
	Title/Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date